

To Be a Mediator: Expressive Tactics in Mediation

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Labor mediators lack formal authority to compel parties to settle. What authority mediators do have emanates from their person, their behavior and skill, and the parties' ongoing assessment of them during a case. These "expressive" dimensions of mediation are latent features of the process, which makes them difficult to isolate and study. In this study, a dramaturgical framework is applied to observational case data to identify a core of expressive tactics commonly used by mediators. These tactics are organized around the theme of professional work. The findings suggest that mediators manage impressions of their expertise to frame settlements, impressions of their social position to convey neutrality toward the parties and a shared collegial network with chief negotiators, and impressions of their legitimacy to establish reputations for action and success. Contrasts in the ways these tactics are used suggest tentative postulates about the differential ways authority is mobilized in mediation.

I gave them a blow-by-blow description of what I did. I don't know whether other mediators do that. I described what I did and what they said, their rationales. That way, I'm able to assure both sides that I am not just a messenger. They expect you to understand contracts. I have to show that I won't be kidded. I have to show that I've been around, that I have some knowledge of common practices. (Comment by a mediator)

It is a truth almost universally acknowledged that the task of the mediator is a difficult one. Labor mediators lay no claim to unquestioned status or formal authority. They are outsiders to the dispute and have no power to compel its parties to resolve their differences. What direct and indirect influence mediators have emanates from their person, their reputation and skill, and the parties' ongoing assessment of them during the case. Although many of the mediators'

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actions on a case may be understood in terms of the direct contribution they make to resolving the substantive issues in dispute, it is generally acknowledged by practitioners and observers that the ability to make such contributions depends on how the mediator is viewed by the parties involved. Specifically, if mediators are to influence parties into rethinking their positions (even in a general sense) and into modifying these positions in order to achieve some form of compromise agreement, then practitioners must be seen as competent and credible. Indeed, what influence mediators have in a case will depend considerably upon whether the parties trust them and have confidence in their skills and abilities. How such perceptions come about is the topic of this paper.

Mediation, like any other social process, may be analyzed along both instrumental and expressive dimensions. From the instrumental perspective, actions taken by the mediator are understood in terms of their immediate goal—a settlement. In this view, tactics that mediators use to learn about the issues and the players, or to gauge priorities and foster movement on the disputed issues, may be analyzed for the substantive contribution the tactics make toward these goals. Most research on mediation, in both the laboratory and the field, focuses on these instrumental strategies and tactics, and the circumstances of their use (See Kochan & Jick, 1978; Kolb, 1983b; Kressel, 1972; Rubin & Brown, 1975; Wall, 1981). In a context where formal power is lacking and behavioral skills are paramount, however, it is impossible to understand fully how mediators contribute to dispute settlement without also considering both the explicit and tacit ways expressive features of the process are managed. Like the instrumental tactics they support, expressive tactics constitute resources from which the mediator's role is negotiated and sustained.

Expressive behavior concerns the symbolic messages mediators convey about themselves. Such behavior is meant to impress the parties with the practitioner's perspicacity, ability, and skill. Expressions may be "given," in that they are explicitly and consciously used to create a particular impression, or "given off," in the sense that they are communicated in the context of instrumental activity without conscious thought or intention (Barley, 1983; Goffman, 1959; Manning, 1977). They are the byproduct of instrumental activity. Indeed, mediators are often unaware of the impressions they convey in the pursuit of their instrumental objectives. This makes the study of expressive behavior something of a challenge. On the few occasions where researchers have tried to uncover how mediators manage impressions of their credibility and competence, they have studied them through self-report interviews and surveys (Indik, Goldstein, Chernick, & Berkowitz, 1966; Kressel, 1972). Since mediators have only a dim awareness of how they manage impressions, it is not surprising that respondents were only able in part to describe how they manage this facet of their work. Perhaps this aspect of mediation is the "art" that remains a mystery even to its

most accomplished practitioners. Therefore one can hardly look to the mediators themselves to define the strategic categories of expressive behavior, for their awareness of them is only implicit.

Dramaturgical Analysis and Mediation

Dramaturgical analysis, with its metaphor of the theatre, provides a framework for considering the expressive domain of mediation. This framework is based on a view of social interaction that emphasizes its fluid and ambiguous features. Specifically, dramaturgical analysts view interaction as an arena where actors come together with potentially differing perspectives on the situation, its meaning, and the opportunities for achieving their goals. The meanings of behavior and events, therefore, will always be open to different interpretations and assessments as each actor judges the situation from his or her particular vantage point. The theatre metaphor suggests that actors use what props and resources they have to manage and manipulate symbols about themselves, and so promote their situational definition over competing ones (Goffman, 1959). The task of the dramaturgical analyst is to describe the specific ways actors create impressions about themselves, their roles, and their abilities, and how these are sustained and supported (Messinger, Sampson, & Towne, 1975).

The categories of dramaturgical analysis also derive from theatrical metaphor. Props and settings, fronts and appearances, dramatic realization, mystification and misrepresentation are the resources actors use to mark events and attributes for others (Goffman, 1959). In the ways they use these resources, actors encourage the audience to view their roles and behaviors in a particular light. It is important to note that dramaturgical analysis highlights a latent function in interaction. Whether actors are consciously aware of the tactics they use or even recognize that "impression management" is part of their work varies among individuals, occupations, and settings (Manning, 1977). Mediators espouse the requirements of trust, rapport, and confidence, which they see as the basis of their influence (Kressel, 1972). They are less sure, however, about the explicit ways in which they communicate these impressions. It is left to the observer to fill in the gap between espoused value and action.

The data reported in this paper come from a study of mediators in a state agency and a field office of the Federal Mediation and Conciliation Service. Over a three-year period, I was a participant observer in these agencies; I observed five state and four federal mediators at work on 16 cases that spanned some 31 individual meetings. The cases covered public and private sector disputes within a variety of industrial and governmental contexts (see Kolb, 1983a; Van Maanen & Kolb, 1985). As an observer, I witnessed all phases of the cases and had considerable opportunity to talk with mediators about their behavior.

Since expressive behavior is a latent feature of mediation, I could not, for the most part, rely on the mediators to identify instances of expressive action. Instead, I used the dramaturgical framework as an heuristic device to see what features of expressive behavior would be revealed. Specifically, I took the tactics of impression management posited by Goffman (1959) concerning settings, personal front and appearance, mystification and dramatic realization, and looked for them in the mediation setting. Working from case transcripts, I extracted examples of these tactics, the context of their use, and rough frequencies of their occurrence. I then considered these data in terms of the specific expressive functions they serve for mediators and their linkage to instrumental role and strategy. It is important to emphasize that the distinctions between expressive and instrumental tactics are not so neat in practice, and that any given piece of behavior may be analyzed for both its instrumental and expressive contribution. The focus on the latter in this paper does not deny the importance of the former.

Managing Mediator Impressions

The ability to mediate is not based on specific technical skills or areas of specialized competence. As in other professions that concern complex human relationships, mediators' knowledge is largely tacit and their skills of a behavioral sort potentially available to many (Wilensky, 1964). This means that the basis upon which they claim authority to practice is always open to challenge. Not only do they lack technical expertise on which to draw, but also the setting conspires against them in pursuit of their tasks. They serve at the will of the parties and have no formal authority to dictate that a settlement should occur or what it should be. Although they are known to some of the negotiators, they are often strangers to bargaining committee members. Further, their task is rather difficult—to assist parties in making compromises they probably do not want to make. In such a milieu, mediators gain credibility and, hence, influence through both intentional and unconscious management of symbolic resources.

In mobilizing the symbolic resources at their disposal, mediators seek to project an impression of professionalism. Several features of the professional model are in evidence (Friedson, 1970; Rothman, 1979). Mediators try to foster the impression that they are *experts* in their field, specifically in economic and behavioral matters. They manage their rapport with *clients* and *colleagues* so that professional as well as personal trust is enhanced. And they *legitimize* their professional efforts by mobilizing data both internal and external to their cases. By projecting these professional cues, mediators suggest to the parties multiple reasons why they should be confided in, trusted, and heeded. In the emphases given these facets of professional front, one can infer certain differences in the ways influence and authority are mobilized in the process (Rogers, 1980).

Impressions of Expertise

Expert knowledge legitimizes authority to advise and prescribe for clients (Friedson, 1970). Knowledge that is technologically or scientifically based endows practitioners with a claim to exclusive competence denied to those whose knowledge base is more tacit and behavioral (Rothman, 1979; Wilensky, 1964). Mediation lacks a scientific or technical basis of practice. Rather, mediators' expertise comprises an assortment of "facts", gathered from experience, about patterns and practices regarding the issues in dispute. From this knowledge base, mediators try to establish their expert credentials.

Setting the scene. Mediators project impressions of professional structure and order. They attire themselves in business suits or jackets and ties, and they carry a briefcase if they are on the road. When they can, they carefully organize room arrangements and seating order, an order that typically places them in a prominent position at the "neutral" head of the table. Initial meetings with the parties, whether they are held jointly or separately, typically follow a fairly standard litany of introductions, sign-ins, and questions and answers about contracts and provisions. Thus, the start of a meeting is similar from case to case. It is a format that is well rehearsed and runs smoothly (Kolb, 1983a).

It is common during the first meeting with the parties for the mediators to introduce themselves, their agency, and their function. The following introduction is representative.

I do everything informally and I will explain what I am doing as we go along. Mediation is a confidential process. I will be telling you things in confidence and you will tell me things in confidence. You will if you want a settlement. If we just go by the formalized procedures, there won't be any settlement, and that will hurt you. I know my job. I've been doing it for 30 years. I think I can get you a decent contract in the least damaging way. I'd like a rough idea of what's been going on.

The introduction announces something of this mediator's intentions for how the process will be run—informally—and the kind of cooperation he expects from the parties—that they will confide in him. The speech also makes manifest, quite early in the case, his credentials, which the parties might not otherwise have known. Not only does this mediator give his job tenure as evidence of his expertise, but he also displays intimate knowledge about the process—that settlements come about informally, that confidence in the mediator is causally related to settlement, and that without his help, they might be damaged. These credentials, mobilized early in the case, are supported further as the mediator begins work on the substantive areas of dispute.

Knowledge props. The mediators' knowledge base is primarily one of incidentals picked up on the round of cases. Incidentals—the wage settlement on

their last case, how maternity is handled, and how a sick-leave policy is structured—become the props that mediators transform into “facts” and “patterns” in their current case. Mediators base part of their claim to expertise on the possession of these facts. In the context of their cases, during different strategic phases, mediators display this factual knowledge extensively. As the factual presentations accumulate during the case, mediators create certain impressions of expertise and also frame the discussion of settlement possibilities.

Mediators begin cases by learning the issues and the background of the dispute. In so doing, mediators tend to view the problem as one of facts.

The mediator first questioned the union about the composition and relative bargaining power of the town committee: Who was on it? Who was the personnel assistant? Did he speak for the mayor? How long had the fire chief been chief? Who called the shots, the attorney or the personnel assistant? The mayor was also of interest to the mediator—his tenure, campaign platform and previous job history. The mediator also requested information about the tax rate, property valuation, and the budget making process (Kolb, 1983a, p. 75).

Questioning the parties about the facts of their dispute has obvious instrumental benefit, providing information to be used later in the dispute. Much of this information, however, is not necessarily used, or even referred to again in the case. But this interchange provided the above-mentioned mediator with an opportunity to display, through the questions he asked, his experience with these matters. It also creates the impression, early in the case, that these facts matter, that what the parties can get will be shaped by the “facts” surrounding their contract proposal. It suggests further that the expert on “facts” is the mediator.

Efforts to encourage the parties to make moves are based substantially on the use of facts and data external to the case. As these facts are introduced, mediators demonstrate knowledge and skills the parties do not possess, and so call attention to this aspect of their expertise. Mediators accomplish this in the following ways:

They define standards against which the parties can compare themselves.

Let me think for a minute. You say the standard average hourly rate is \$6.40? What's the total fringe cost? \$2.05. That's about right. The standard is usually 35% of wages. \$2.05 seemed low, but at \$6.40 that's about right.

They offer solutions to particular substantive issues, drawing upon provisions with which they are familiar. To a management attorney, who voiced displeasure at sick-leave banks, the mediator explained the nuances of such banks:

It's not really a bank. It's different. You don't pay. You are talking as if it's black and white; there's a gray side. There are “caps” and ways to do it. You can condition it so there are no abuses. Are you afraid of the ripple effect in other units? The teachers already have it, you know.

They rely explicitly on their experience to suggest that patterns exist on both economic and noneconomic issues, and that a settlement above the pattern is unlikely.

You are asking for another holiday. You already have one above average.

These kinds of comments about standards, patterns, and practice have discernible instrumental effects. They help the parties see more clearly the trade-offs and options they have in the design of a sick-leave policy or vacation demand. The expressive byproduct of these interventions is the display of the mediator's knowledge of pattern and practice. Tacit evidence for this expressive function is provided by the mediators themselves.

You get rapport by giving advice on issues that are ancillary to the main problem. I use these opportunities to support rapport. The more they can say, "He knows what he's doing," the better it is when I have my final say. So you saw on the sick-leave bank, you have to know about sick-leave banks to say that stuff. On the question of possible illegalities, you warn them. It helps your credibility.

Expressively, these interventions also serve to reinforce the mediator's definition of the kind of agreement the parties can expect, one that will reflect, in some form, the practices and patterns with which the mediator is familiar. As one mediator stated:

You can't just think of what you want. You have to think of how what you want compares with what teachers are getting elsewhere.

Although mediators do not always make such statements directly, their extensive display of knowledge about external facts and incidentals frames the definition of what is possible.

The facts that mediators display do not always withstand close scrutiny. In the process of influencing parties to make moves, mediators use the arguments of their experience and present them as facts. An average vacation, the usual way to control a sick-leave bank, or a wage that conforms to a pattern are facts that rarely are based on verifiable statistics. They are standards selectively used, sometimes consciously and at other times not, to create perceptions of patterns into which the mediators' opinions can fit. As such, the facts can always be challenged and the expressive tactics shifted to those of repair. For example, one mediator believed that an extra stipend should be paid for certain work performed by firefighters. The mediator based his argument on his conviction that such stipends were fair. To support this contention, he noted that it was universal practice in other cities and towns. A member of management consulted a statistical source and informed the mediator that the practice was not universal or even that common. The mediator responded by emphasizing his deeper understanding of the pattern.

You are looking at the wrong cities and towns. No fact finder would agree to that. You look only at your geographic area. You can't go outside your economic universe.

The management of factual knowledge concerning pattern and practice serves to build the parties' perceptions of the mediator as an expert. Such perceptions not only enhance the mediator's credibility, but may also serve the objectives of chief negotiators who often share with the mediator a common definition of the settlement parameters. The mediator's injection of facts in these cases reinforces the negotiators' efforts to emphasize the "facts of settlement." In this way, chief negotiators and mediators cooperate as a team to foster a particular definition of mediation that affirms the expert role of both.

Impressions of Rapport

In professions where practitioners provide a service, clients may have the resources to affect how occupational tasks are performed. This is particularly the case when practitioners lack legitimate authority (Rothman, 1979). Tactics to manage the relationship between practitioners and clients or customers are, therefore, a prominent feature of these service occupations (Bigus, 1972; Davis, 1959). Labor mediators are such practitioners. In this context, however, the relationship between practitioner and client is complicated by the multilateral character of the bargaining groups. Ultimate authority for the ratification of a contract rests with the union and management constituencies, who do not usually attend the mediation. Bargaining committees represent their respective constituencies during the proceedings: these are the mediators' clients. Many of them are strangers to the mediators and frequently have only limited experience with the process. Mediators try to manage the relationship with these parties in such a way that camaraderie and a sense of familiarity are quickly attained.

Most committees have as their chairperson a chief negotiator who is not a member of the bargaining unit or management team. Many of these attorneys, union representatives, or industrial relations specialists have considerable experience with mediation. The mediator has often worked with them or knows them by reputation. These "pros" are more like colleagues (Kolb, 1983a). Rapport between the pros and mediators is frequently assumed, and reaffirmed during the case, by reference to the broader social network of which they both are part. In the way rapport is established with committees and sustained with the pros, mediators are able to influence the parties on a personal as well as factual basis.

Dramatic intimacy. Mediators allege that their relationship with the parties makes a significant difference in the conduct and outcome of a case. Although mediators use their expertise to frame the case context and to influence the parties' moves, they believe that chances for settlement are enhanced if they have rapport with the parties.

You see, it all comes down to rapport. I have it with them. We know each other. We joke. They know they can trust me. That's why they followed what I said on the salary schedule.

Mediators establish rapport by creating an impression of intimacy and friendship. They ask the committee members to call them by their first names, often correcting someone who refers to them by a formal title. They request that the bargaining committee members sign in on a sheet of paper; this gesture allows a mediator to call members by their first names. Chatter about local sports teams, the weather, and politics creates an air of informality.

Such general impressions of rapport are supported by specific tactics mediators use to create a sense of alignment between themselves and the parties. These alignment efforts also serve to project impressions of neutrality seen as so basic to trust between the mediator and the parties (Kressel, 1972). Mediators seem to create a working impression of neutrality by selectively allying themselves with the parties during different phases of the case:

They flatter the parties to show an appreciation of their talents.

I hear you are very creative up here in Sheridan.

They congratulate the parties.

I didn't think the speech you gave them about the company's position would work, but it did. I'm impressed. Congratulations.

They express empathy for their plight, particularly when a committee has had to make concessions.

I'm telling you what they told me. I heard the lecture on them "giving" and you "taking." But you are performing an important function. I wish I could get you everything you want. You deserve it.

Impressions of alignment and support are also fostered in the ways mediators describe their perceptions of other participants. In the accounts mediators give to one party of what transpired in meetings with the other party, they often demean opposing members and their positions. In so doing, they create a sense of an alliance with one group over the other.

Their [management's] positions are stupid. You know Tom [management committee member] is very "scientific" with his figures. I lose patience. I lectured them, but they get hung up.

Similarly, when mediators describe the union as "an erratic group in terms of logic" or a management group as "stubborn and smug," they suggest to whichever party they are talking to that they are an ally who shares its views of the other side and can be counted on for support. Impressions of alignment given to both parties seem to give rise to an ironic form of neutrality. In expressing support for one party at the expense of the other, and doing so to both parties, the

mediator expresses mutual support. If all goes well, this selective bias leads to an overall impression of neutrality. If the bias is unmasked, the mediator can become quickly discredited.

Dramatis personae. The mediators' colleagues are the "pros" from union and management whom the mediators can expect to see with some regularity. Their membership in a network of such pros is a resource used to enhance rapport with the pros on the current case. A positive working relationship with the pros is useful to the mediators, for pros can play a pivotal role in the settlement process and lend support to the mediators' efforts. So too, mediators aid the pros in their own intraorganizational bargaining efforts (Kolb, 1983a). Mediators try to establish and maintain rapport with the pros by creating a sense of shared occupational community and culture (Van Maanen & Barley, 1983). "Name dropping" is a favored tactic.

Mediators routinely mention other practitioners to the pros in the context of their present case. Some mediators do so to establish their position at the outset. One mediator began each meeting he had with a committee by engaging the chief spokesperson in a discussion of some mutual professional acquaintance:

Did you hear Jim Smith of the Pipefitters just became a grandfather?

In every conceivable context, mediators initiated conversations about people who had no discernible relationship to the subject on the table. In the middle of reporting management's response to the union, one mediator said,

Do you know Tom Jones? I heard he just got a promotion. We worked together just last week. He's a great guy.

These routine allusions to members of a mutual network of acquaintances convey an impression to the pros about the trustworthiness of the mediator. If the mediator knows these people, has worked with them, keeps in touch with them, then it is as if the absent member has symbolically vouched for the mediator, and for his or her personal worth and trust. Indeed, the fact that mediators frequently drop names when they experience difficulty on a case suggests the way in which allusions to the shared network function. The symbolic introduction of a mutual acquaintance serves to remind the pros of their collegial network, which transcends the boundaries of any given case. In this way, mediators believe their advice and suggestions are more likely to be heeded.

Impressions of Legitimacy

Certain professionals claim legitimacy for their work apart from the contextual practice of it. Practitioners in helping professions, however, often have few legal, organizational, or cultural bases upon which to establish their claims

(Rothman, 1979). The human relations skills that form the basis for helping work are both too broad and too vague to claim exclusive rights to practice (Wilensky, 1964). Further, the nature of the work and product produced makes it difficult to evaluate performance or to separate the practitioners who are competent from those who are not (Manning, 1977). Mediation is a human relations profession where legitimacy must be proven in action and is not automatically conferred by the role (Berger & Luckman, 1967).

Establishing legitimacy is a challenge for labor mediators. They are often unsure about the specific contributions they make to the resolution of a dispute (Kressel, 1972). Further, the process is such that progress in a case is often difficult to detect. Action is slow; it is possible that there will be no movement at all or, if there is, that there still will be no settlement. Thus it is difficult for parties to assess what contribution mediators make to settlements. To clarify this aspect for the parties, mediators highlight their own activities and draw upon experiences external to the current dispute to validate their claims. Establishing legitimate credentials strengthens a mediator's credibility with the parties and so enhances potential influence.

Highlighting the plot. Action in mediation is hard to gauge. Sometimes the parties make incremental changes in their positions and realize (perhaps through focused comments by the mediator) that progress is being made. Often, however, movement is not evident. In these cases, mediators take it upon themselves to create the impression that things are happening. In so doing they insist upon the connection between progress and their own contribution to it. When changes in position occur, mediators explicitly call attention to them and classify the moves as "progress."

As a result of this meeting, I think you've made some progress. You recognized the issue of the fifth hour on the air and started to address it. We're off the dime. Let's bring it home.

In this example, the mediator identified progress in the fact that management agreed to make a counterproposal to the union. The parties themselves do not always see these moves as progress.

Attorney: We've been here from ten to three and we're no closer to agreement than when we started.

Mediator: I think we are. They heard you about the company's situation. Once it sinks in, they'll come back with something.

Ever optimistic, but lacking overt evidence, this mediator based his notion of progress on a hunch. While such optimism undoubtedly serves instrumental purposes in calling attention to progress, mediators also try to suggest that they themselves have been directly responsible for it.

Mediators spend a considerable portion of their time transmitting proposals,

questions, and information from one committee to another. In conveying substantive information, mediators tend to embellish these “messages” by reporting their own part in fashioning them. Because the preparation of these proposals is not observed by the recipients, mediators have license to dramatize the parts they played. In so doing, they emphasize the difficulty of their task and the diligence with which they pursue it. For example, just prior to reporting management’s proposal, a mediator gave this account of what had transpired:

Contrary to what you may think, I’m keeping them (management) in their room, keeping the pressure on them. I’m interested in resolving it. I want something done today, because I know that’s what you want. You said you wanted some assurances on the overtime issue, here’s what they propose.

In this case, it is interesting to note that the mediator was not actually present at all while management discussed changes in its offer. Another mediator made a direct link between his own effort and the outcome:

You do not have just cause for discharge. I argued with them to give it to you. I told them I hoped they would get burned on it. They’ve given you a job description. I got you the snow days and the substitutes’ pay. On wages, I got 10 cents. I begged them to give you 19 or 20. I told them it was such chickenshit.

In these examples, the mediators highlighted changes in positions as signs of progress, and in so doing suggested that they were directly responsible. They tried to create the impression that the outcomes achieved were inseparable from their own expertise and talents. In this way, they use resources within the case to establish legitimacy. In contrast, while they take credit for success, failure is usually blamed on other people or events outside the mediator’s control (see Kolb, 1983a).

Reports from offstage. Mediators may also establish their legitimacy in a case by mobilizing data about themselves that are external to the immediate dispute. During a case they frequently allow details about their caseload and schedule to surface. Interruptions are common. One mediator, for example, participated in a case away from his office. During a three-hour meeting, he received eight phone calls from his office. He claimed that these calls were necessary.

I like to stay on top of my caseload. Besides it shows these folks that I am in demand.

The full appointment book and the hesitation before scheduling another meeting, impressions of being busy and in demand, convey something of the mediator’s reputation and status.

Mediators also use their successes in other cases to confirm impressions of their reputation and skill in order to set a hopeful and optimistic tone:

I did Oxford. We did well with the aides up there. They are up to \$4 over the next two years.

Other successes are introduced to lend credence to specific tactics the mediator wants to use:

I propose this, it's a suggestion to help me. I suggest we get together. Flexibility is the key to negotiations. I propose an airing-out session on the scheduling issue to generate a dialogue. Last night, at Rockford, one of the issues was scheduling. We had an airing of the views that resulted in agreement at 1 a.m. I know you've gone over it 100 times; do it once more.

Success in other situations also serves to repair the mediator's standing with the parties when progress is *not* forthcoming in the current case:

I didn't make much headway. In fact, maybe I went backwards. I had a private sector case in Oldtown. At least it was real. These are freezer people; they freeze and store fruit. For that, a laborer gets \$6.40, and the forklift operator gets \$6.00 and fully paid hospital and a pension of \$300 per month. For every hour in the freezer, they get 10 minutes off. The employer came in at 20 cents and I got them to move to 50. And I got them to move on fully paid health and hospital, and I moved the pension to \$425, and the senior people could decide work crews.

In this case, the mediator had to report an error on his part. Rather than dwell on this error, he introduced another case that had no direct relation to this "public sector" teachers' dispute. By describing his success with the "freezer" people, he was implicitly asking the union to have faith in him and his abilities despite the setback.

Drawing upon successes in other cases nicely complements mediators' efforts in a case to link progress to their actions. When movement of any sort occurs, mediators can mobilize these data to foster impressions about the pivotal nature of their own role. In a given instance mediators can never be sure that these indicators of progress will be at hand. Data on successes from other cases become important resources to mediators in shaping perceptions of their skill and reputation. These become particularly crucial when faith in these faculties are flagging. In this way mediators ask for the parties' trust on the basis of both internal progress and their external track record.

Conclusion: Impressionistic Bases of Authority

Mediators have only a limited domain of resources to draw from in pursuit of their settlement objectives. They lack formal authority to compel parties to settle or to dictate the terms of a settlement. Much of their influence stems from the expressive management of their expertise, their rapport with the parties, and the parties' perceptions of their contributions to progress and settlement in the current case and in others external to it (Rogers, 1980). In the ways mediators manage these facets of their professional work, they seek to influence the parties to believe certain things about themselves and the process.

Mediators try to establish their expert credentials in such a way that the "facts" of their experience will frame the way parties think about settlement.

They seek to align themselves with the committees and to be colleagues to the pros in order to foster impressions of neutrality and personal rapport and trust. And they mobilize aspects of their own behavior in such a way that progress is seen to be contingent on their presence. These categories of expressive tactics constitute the major ways mediators seek to establish their professional standing in a case and to control impressions of it. Several modifying observations need to be made.

The relative emphasis given these tactics seems to change during a case. At the outset, first impressions tend to be based on reputation and the demonstration of certain skills and knowledge. These traits are demonstrable apart from the particular case context. As the case unfolds, expressive tactics revolve around managing the dynamics of the particular situation. Indeed, if the parties feel, despite the mediator's best expressive efforts, that no progress is being made, these endeavors will come to naught. Such observations suggest further how tightly coupled are the expressive and instrumental domains of the process.

Mediators do not act as solo performers in the creation of these impressions. What influence the mediator has will depend, in part, on the disposition of the parties. Pros who are anxious to settle with the help of the mediator will support and reinforce the positive impressions the mediator is trying to foster. Others may not play their part in the drama if their intent is different. Further, to the extent that parties lose respect for an agency or particular mediator, expressive tactics will have less impact than when reputations are more favorable.

Finally, the use of these expressive tactics, and the ways they are combined and organized, suggest differences in the ways mediators mobilize authority in disputes (Rogers, 1980). Specifically, some mediators derive their authority referentially, others from their expertise, and a few use themselves and their reputation as the basis for their claims (French & Raven, 1959; Merry & Silbey, 1982).

The federal mediators in this study see their roles as orchestrators and their strategic task as one of narrowing the issues in dispute (Kolb, 1981, 1983b). Consistent with this strategic agenda, these mediators tend to devote considerable attention to managing their client relationships with the committees and their collegial ones with the pros. Indeed, they appear to derive much of the influence they have from the impressions of personal trust and rapport they engender. Team efforts between pros and mediators are a prominent feature of this case-load.

State mediators play the role of deal makers; they create a situation in which they are pivotal to the substantive resolution of the dispute (Kolb, 1981). All the state mediators in the study use a building strategy to develop a package from priority issues (Kolb, 1983a,b). Some of the mediators, however, emphasize their expertise and knowledge as the basis upon which their advice and opinions about a package should be heeded. That is, these mediators seem to derive their

influence from their technical expertise. Others, however, try to use their reputation and accomplishments as the basis for the influence they seek to exert. These tentative conclusions suggest that mediators, in the ways they seek to establish their professional roles and manage impressions of their skills, may draw upon different sources of authority.

What authority a mediator requires will depend, in part, on strategic intent and agenda. If the role is defined primarily in facilitative terms, then the mediator must be able to show him- or herself in command of the interactive dimensions of the process. For the mediator who seeks to have a definitive impact on the substance of the package, credentials of either expertise or reputation will have to be firmly established early in the process and reinforced by evidence of efficacy in the current case.

At different times and under different circumstances, all mediators attend to these expressions of themselves. Instrumental tactics cannot be understood or evaluated for efficacy without attention to the expressive ways in which the process is managed. As the mediator quoted at the start of the paper suggested, to neglect how mediators manage impressions of themselves is to miss a significant component of strategic behavior, for these expressive tactics are an essential part of what it means to be a mediator.

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